

		Plaintiffs are ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiffs must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
3	Cuico v. Absolute Home Mortgage Corporation 2024-01371269	Off calendar.
4	Oropeza v. Oceanfront Recovery at Laguna Beach, LLC, et al. 2023-01302016	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of an \$80,000 PAGA settlement. This is the third hearing on plaintiff's motion. The court has issued detailed orders (ROA 82, 117) in connection with both of the prior hearings. The court has the following questions and comments: 1. The court's October 16, 2025 order (ROA 117) states: "<u>If required, an amendment to the settlement agreement shall be submitted, rather than an 'amended settlement agreement,' to streamline the court's review of the documents.</u>" 10/16/25 Order (ROA 117) (bold and underlining in original). For unknown reasons, plaintiff submitted an amended settlement agreement. <u>As to the settlement (Supp. Lo Decl. (ROA 138) Ex. B):</u> 2. The court's prior orders address the effective date of the PAGA release for unnamed aggrieved employees and the aggrieved employees' release. ROA 82, 117. In an effort to avoid more than one further hearing on this motion, the court orders the parties to revise the amended settlement agreement as follows: a. The last sentence of paragraph I.7 should be removed. b. The phrase "for civil penalties" should be inserted in paragraph I.14 after "all claims" and before "under PAGA." c. The word "Representative" should be removed from the heading of paragraph III.6, and the following phrase should be removed from the first sentence of paragraph III.6: "In her capacity as a private attorney general or 'aggrieved employee' acting on behalf of herself, the State of California and Aggrieved Employees." Extending this provision to anyone other than plaintiff is unnecessarily duplicative of the PAGA release in paragraph III.8. d. The following phrase should be inserted at the beginning of the first sentence of paragraph III.8: "Effective upon Defendants' full funding of the Maximum Settlement Amount."

		e. The phrase "and the State of California" should be removed from the first sentence of paragraph III.8. f. The following phrase should be removed from the first sentence of paragraph III.8: "PAGA Released Claims means any and all claims under PAGA." 3. In the April 24, 2025 order (ROA 82) and October 16, 2025 order (ROA 117), the court stated that plaintiff should state her total anticipated consideration (including for any individual claims), and in the October 16, 2025 order (ROA 117) the court stated that plaintiff should file a copy of the individual settlement agreement with the court. Plaintiff has neither stated her total anticipated consideration nor submitted a copy of her individual settlement agreement. Plaintiff's counsel states that plaintiff's "confidential settlement agreement can be provided for the Court's in camera review." Supp. Lo. Decl. (ROA 138) ¶ 18. As an initial matter, the court has not received a copy of the agreement. In addition, the court declines to review the document in camera, as all materials filed in support of plaintiff's motion must be part of the court file for this action. If the parties contend the agreement is confidential, the parties should have lodged a copy of the agreement conditionally under seal and filed a noticed motion to seal the documents before the June 18, 2026 hearing on this motion; if that remains the parties' position, the parties should promptly do so, as the court will not grant plaintiff's motion until the agreement has been submitted to the court as ordered in the October 16, 2025 order. The motion to seal should explain, <i>inter alia</i>, why plaintiff's individual settlement agreement should be shielded from, e.g., the aggrieved employees whose interests plaintiff purports to represent. <u>As to the notice letter (Supp. Lo. Decl. Ex. D):</u> 4. The notice letter should be revised consistent with the above. 5. The last sentence of the "What Is This Lawsuit About?" section should be removed, as it does not accurately describe the aggrieved employees' release which is, in any event, stated later in the document. 6. The word "Oceanfront" in the first paragraph of the "Who Is Included In The Settlement?" section should be replaced with "Defendants." The word "Oceanfront" in the second (one sentence) paragraph of the "Who Is Included In The Settlement?" section should be replaced with "Defendants." 7. The word "requested" should be removed from subsection 1 of the "Who Is Included In The Settlement?" section.
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		revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
5	Seaman, et al. v. SAS Retail Services, LLC 2022-01292199	<u>Plaintiffs' Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiffs' motion for approval of a \$1,560,534.58 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. Are there 19,000 aggrieved employees? See Hartranft Decl. (ROA 192) Ex. B. If not, how many aggrieved employees are there? 2. The parties should provide the average, high and low individual PAGA payments. 3. Each plaintiff should state his or her total compensation to be received (excluding for any enhancement award and including for any individual claims). Plaintiffs should also submit copies of the individual settlement agreement(s). See Settlement Agreement ¶ A.23. 4. The "Released Claims" provision in paragraph A.23 of the settlement agreement is overbroad. Releases for aggrieved employees other than plaintiffs should not release more than the civil penalties available under PAGA based on the facts alleged in the operative complaint and the notice letter(s) to the LWDA. Subsections (B), (C) and (D) should be removed, as should the third-to-last and last sentences of paragraph A.23. The meaning of the third-to-last sentence is unclear and the last sentence appears duplicative of other statements in the paragraph. 5. The "Released Parties" provision in paragraph A.24 is overbroad. It includes unrelated, ambiguous and/or unidentified third parties such as "affiliates," "partners, joint venturers, affiliated organizations," and "insurers,